

Missing reappraisal for sale. Prob.C. § 10309(a)(1)–(2). Administrator appears to misread the appraisal by the probate referee which fixes the date-of-death value of the property, not a date-of-appointment value.

Petition to confirm sale of real property (148 Hap Arnold)

Appearance is required for hearing on petition to confirm sale of real property (148 Hap Arnold).

Missing notice of sale. Missing proof of publication of notice of sale. Prob.C. § 10300; see also Prob.C. § 10312. Notice of sale and notice of confirmation hearing are distinct notices and both are required.

Missing service of notice of confirmation hearing to PR of the estate of Eugene Murphy, the sole heir of this estate. Missing proof of posting of notice of confirmation hearing. Prob.C. § 10308(c).

Missing reappraisal for sale. Prob.C. § 10309(a)(1)–(2). Administrator appears to misread the appraisal by the probate referee which fixes the date-of-death value of the property, not a date-of-appointment value.

Clarification: administrator requests approval of commissions of nearly 11% of the sale price, without explanation for the unusually high request.

2. S-PR-0012296 In Re the Estate of Donald, Blane Edward

Administrator response is needed: administrator alleges distributions of the bulk of the estate to himself and to devisee Hunter Donald. No petition for preliminary distribution was ever filed or granted. Administrator had no authority to distribute either real property or cash to any devisee of the estate. It is recommended the court decline to approve all impermissible preliminary distributions.

Administrator response is needed: the estate was previously granted a judgment of \$25,000 against Sherry Donald. The judgment is not mentioned in the petition and it is unclear whether the judgment has been collected or remains an asset of the estate.

Attorney response is needed: the court has previously determined in adversarial proceedings that reasonable attorney fees for the estate litigation concerning title to the real property was \$25,000. Counsel should address any basis on which the court should not determine that reasonable extraordinary fees should be fixed at an amount greater than \$25,000.